Assignment 1 – The Traffic Police AI Camera Case

1. Was there any misconduct by the Traffic Police?

There are two distinct decisions in the case. Decision A is to install the cameras, monitor speeding and fine drivers automatically. Decision B is to allow real-time access of the data collected to the Organized Serious Crimes Bureau (OSCB). In my opinion, decision A is justifiable, but decision B is not. I argue so through application of three ethical theories covered in the course.

Act utilitarianism. In terms of a simple cost–benefit assessment, both decisions are reasonable: speeding dropped by 90%, meaning lower number of deaths and injuries, and five dangerous criminals have been caught. Costs of continuous monitoring of everybody driving and 1% erroneous identification appear to be small. Nevertheless, there is an inherent flaw in utilitarianism: it ignores distribution. The benefits of both decisions are shared by everyone, while the costs of being mistakenly fined and being constantly monitored by a crime bureau fall on particular individuals who never agreed to carry them out. Total benefit doesn't justify unfair distribution.

Kantianism. For decision A, the maxim is "A government may employ automated measures to enforce prohibitions of dangerous behaviour on public roads." It passes both Kant's tests: it can be universalised and drivers are aware of camera presence at junctions. For decision B, the maxim is "Data collected for purpose A may be used for purpose B without notifying individuals the data concerns." If everybody acts on this maxim, there will be no predictable purpose in any data collection and consent as a concept becomes logically contradictory. It also fails Kant's second formulation: drivers were not notified about face recognition and tracking their movements by crime bureau, hence they couldn't possibly consent; they were used only as means to catch dangerous criminals.

Rule utilitarianism and social contract theory. Made into a rule – "law-enforcement agencies may exchange the data collected for one purpose with any other agency without requesting extra authorization" – decision B results in poor long-term consequences: distrust in data collection by governments increases, cooperation becomes harder and governance more expensive. Fewer arrests cannot outweigh it. From the viewpoint of social contract, privacy is a negative right (the government only needs to restrain from data collection) and such rights are typically absolute, while public safety is a positive one which is usually limited. The Traffic Police may have acted legally, but as was discussed in the class, legality is only the minimum of the social contract; "it was legal" is not an ethical justification. Finally, the case says that the police simply "complies" – no proportionality assessment, no court order, no notification to the public – thus demonstrating lack of prudence expected of a virtuous institution.

2. Who benefited?

Law-abiding motorists, who don't have to face speeding drivers anymore; the society as a whole, which is safer with the arrest of five serious criminals; the Traffic Police and the OSCB, whose performance metrics have improved; and potentially the victims of both traffic accidents and organized crime.

3. Who was harmed?

All motorists driving by junctions, including the 90%+ who don't speed, since their faces and movements are recorded constantly, and after Decision B, are being monitored in real-time by a crime bureau to which they never consented. Motorists who are erroneously identified by the system: 99% precision still leaves one error per hundred identifications, which is a big absolute number at junction traffic volume, with the burden of proof shifted to the wrongly fined motorist. Groups of people for whom facial recognition algorithms are less precise (e.g., people with dark skin, females, seniors), who will suffer from the higher number of false positives – 99% is an average value, hiding disparate impact. The society as a whole is facing a chilling effect on mobility and loss of trust in data collection by government agencies.

4. What else could the Traffic Police have done?

In order to reach the goal of speeding suppression: collect licence plates instead of performing face recognition; process images locally and upload only speeding incidents, deleting everything else; establish short period of retention and automatic deletion; perform human review and allow appeals before a ticket becomes final; and announce what kind of data is being collected and for what purposes. In order to respond to the OSCB request: reject blanket real-time access and require instead a request on a per-case basis and judicial authorization for every particular suspect; log all access and conduct audits; and receive approval from the Privacy Commissioner or an independent oversight agency before every data exchange agreement.

5. What additional information would have been useful?

Is real-time access by the OSCB authorized by the law? Is any court or privacy authority ever asked to review this access? How long is data stored, who has access to it, and is there a logging of any access? On what population the 99% precision was tested and are error rates the same across genders, ages and ethnicities? Are wrongly fined motorists given a chance to appeal and who carries the burden of proof in an appeal? Was the motorists notified of the secondary use of the collected data? And is 90% suppression of speeding possible with less intrusive measures, e.g., using only plate recognition?

Conclusion

The Traffic Police had justification for using AI cameras to suppress speeding, but were unethical to provide real-time access to the collected data to the OSCB. There are three independent ways to reach this conclusion, Kant's two formulations, rule-utilitarian test, and the negative-right analysis of the social contract and only one theory supporting the exchange, act utilitarianism, is inherently weak when it comes to the question of who pays the cost.